

SENATE No. 189

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to digital right to repair.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>4/22/2026</i>

SENATE No. 189

By Mr. Brady, a petition (accompanied by bill, Senate, No. 189) of Michael D. Brady, Joanne M. Comerford and James B. Eldridge for legislation relative to digital right to repair. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to digital right to repair.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General laws are hereby amended by inserting after chapter 93K the following

2 Chapter:-

3 Chapter 93L Consumer Electronic Devices

4 Section 1. As used in this chapter, the following terms shall, unless the context clearly
5 requires otherwise, have the following meanings:

6 "Authorized repair provider" means, with respect to an manufacturer, an individual or
7 business who is unaffiliated with the manufacturer and who has an arrangement with
8 manufacturer under which the manufacturer grants to the individual or business a license to use a
9 trade name, service mark, or other proprietary identifier for the purposes of offering the services
10 of diagnosis, maintenance, or repair of consumer electronic devices under the name of the
11 manufacturer, or other arrangement with the manufacturer to offer such services on behalf of
12 manufacturer. A manufacturer who offers the services of diagnosis, maintenance, or repair of

consumer electronic devices manufactured by it or on its behalf, or sold or otherwise supplied by it, and who does not do so exclusively through one or more arrangements as described in this subsection with an unaffiliated individual or business, shall be considered an authorized repair provider with respect to such equipment.

“Consumer Electronic Device” or "device" means any product or electronic that:

(a) Depends, in whole or in part, on digital electronics, such as a microprocessor or microcontroller, embedded in or attached to the product in order to function;

(b) Is tangible personal property;

(c) Is generally used for personal, family, or household purposes;

(d) Is sold, used, or supplied in Massachusetts 180 days or more after the product was first manufactured and 180 days or more after the product was first sold or used in Massachusetts; and

(e) Might be, but is not necessarily, capable of attachment to or installation in real property.

means a product which includes a battery, microphone, speaker and display designed to send and receive transmissions through a cellular radiotelephone service.

"Documentation", means any manual, diagram, reporting output, service code description, schematic, security codes or passwords, or other information used in effecting the services of diagnosis, maintenance, or repair of consumer electronic devices.

“Fair and reasonable terms”, for obtaining a part or tool or documentation means costs and terms that are equivalent to the most favorable costs and terms under which manufacturer offers the part, tool, or documentation to an authorized repair provider accounting for any discount, rebate, convenient and timely means of delivery, means of enabling fully restored and updated functionality, rights of use, or other incentive or preference the manufacturer offers to an authorized repair provider, or any additional cost, burden, or impediment the manufacturer imposes on an owner or independent repair provider. For documentation, including any relevant updates, “fair and reasonable terms” also means at no charge, except that, when the documentation is requested in physical printed form, a charge may be included for the reasonable actual costs of preparing and sending the copy.

"Independent repair provider" means, with respect to a manufacturer, an individual or business operating in the Commonwealth, who does not have an arrangement as an authorized repair provider with the manufacturer, and who is not affiliated with any individual or business who has such an arrangement with the manufacturer, when that individual or business is engaged in the services of diagnosis, maintenance, or repair of consumer electronic devices. A manufacturer or, with respect to that manufacturer, an individual or business who has such an arrangement with that manufacturer, or who is affiliated with an individual or business who has such an arrangement with that manufacturer, shall be considered an independent repair provider when engaging in the services of diagnosis, maintenance, or repair of consumer electronic devices that is not manufactured by or on behalf of, or sold or otherwise supplied by, that manufacturer.

"Manufacturer", means a business engaged in the business of selling, leasing, or otherwise supplying new consumer electronic devices, or parts of equipment, manufactured by or on behalf of itself, to any individual or business.

"Owner", an individual or business who lawfully acquires a portable wireless device purchased or used in the Commonwealth.

"Part" means any replacement part, either new or used, made available by or to a manufacturer for purposes of effecting the services of maintenance or repair of consumer electronic devices manufactured by or on behalf of, sold or otherwise supplied by the manufacturer.

"Tool" means any software program, hardware implement, or other apparatus used for diagnosis, maintenance, or repair of consumer electronic devices, including software or other mechanisms that provision, program, or pair a part, calibrate functionality, or perform any other function required to bring the product back to fully functional condition.

"Trade secret" means anything tangible or intangible or electronically stored or kept which constitutes, represents, evidences, or records intellectual property including secret or confidentially held designs, processes, procedures, formulas, inventions or improvements, or secrets of confidentially held scientific, technical, merchandising, production, financial, business or management information, or anything within the definition in 18 U.S.C. 1839(3).

"Video game console" means a computing device, such as a console machine, a handheld console device, or another device or system, and its components and peripherals, that is primarily used by consumers for playing video games, but which is neither a general nor an all-purpose computer, such as a desktop computer, laptop, tablet, or cell phone.

75 Section 2. Manufacturers of consumer electronic devices, or parts for such equipment,
76 manufactured by it or on its behalf, or sold or otherwise supplied by it in the Commonwealth,
77 shall make available to owners of such devices and to independent repair providers, on fair and
78 reasonable terms, documentation, parts, and tools, inclusive of any updates, for purposes of
79 diagnosis, maintenance, or repair of such devices. Nothing in this subsection requires a
80 manufacturer to make available a part that is no longer available to the manufacturer.

81 Section 3. Manufacturers that sell any diagnostic, service, or repair information to any
82 independent repair provider or any other third-party provider in a format that is standardized with
83 other manufacturers, and on terms and conditions more favorable than the manner and the terms
84 and conditions pursuant to which an authorized repair provider obtains the same diagnostic,
85 service, or repair information, shall be prohibited from requiring any authorized repair provider
86 to continue purchasing diagnostic, service, or repair information in a proprietary format, unless
87 such proprietary format includes diagnostic, service, repair, or dealership operations information
88 or functionality that is not available in such standardized format.

89 Section 4. Nothing in this chapter shall be construed to require a manufacturer to divulge
90 a trade secret, except as necessary to provide documentation, parts, and tools on fair and
91 reasonable terms.

92 Section 5. Nothing in this chapter requires manufacturers or authorized repair providers
93 to provide an owner or independent repair provider access to non-diagnostic and non-repair
94 information provided by a manufacturer to an authorized repair provider pursuant to the
95 terms of an authorizing agreement.

96 Section 6.(a) An independent repair provider or owner who believes that a manufacturer

has failed to provide documentation, parts, and tools for purposes of diagnosis, maintenance, or repair of consumer electronic devices as required by this chapter shall notify the manufacturer in writing and give the manufacturer 30 days from the time the manufacturer receives the complaint to cure the failure. If the manufacturer cures such a complaint within the cure period, damages shall be limited to actual damages in any subsequent litigation.

(b) If the manufacturer fails to respond to the notice provided pursuant to subsection (a), or if an independent repair provider or owner is not satisfied with the manufacturer's cure, the independent repair provider or owner may file a complaint in superior court. The complaint shall include the following:

(1) written information confirming that the complainant has attempted to acquire and use, through the then available standard support function provided by the manufacturer, relevant documentation, parts, and tools, including communication with customer assistance via the manufacturer's then standard process, if made available by the manufacturer; and

(2) evidence of manufacturer notification as required by subsection (a).

Section 10. In addition to any other remedies that may be available, a violation of this chapter shall be deemed to be an unfair method of competition and an unfair or deceptive act or practice in the conduct of trade or commerce in violation of section 2 of chapter 93A.

Section 11. This Act applies with respect to equipment sold or in use on or after the effective date of this Act.

Section 12. This Act takes effect January 1, 2026

Section 13. Nothing in this chapter shall apply to a device approved by the United States Food and Drug Administration.

Nothing in this section shall apply:

(a) Motor vehicle manufacturer, manufacturer of motor vehicle equipment, or motor vehicle dealer acting in that capacity or to any product or service of a motor vehicle manufacturer, manufacturer of motor vehicle equipment, or motor vehicle dealer acting in that capacity;

(b) Manufacturer, distributor, importer, or dealer of any power generation or storage equipment, or equipment for fueling or charging motor vehicles;

(c) Product that has never been available for retail sale to a consumer;

(d) Product which is a system, mechanism, or series of mechanisms that generates, stores, or combines generation and storage of electrical energy from solar radiation; or

(e) Product which stores electrical energy for a period of time and transmits the energy after storage, that is interconnected with a transmission or distribution system and that is approved by an electric utility or located on a customer's side of an electric utility meter in accordance with an applicable utility tariff or interconnection agreement.

(8) Nothing in this section applies to utility equipment; farm or agricultural equipment; construction equipment; compact construction equipment; road building equipment; electronic vehicle charging infrastructure equipment; mining equipment; and any tools, technology, attachments, accessories, components, and repair parts for any of the foregoing.

(9) Nothing in this section shall be construed to require any original manufacturer or authorized repair provider to make available any parts, tools, or documentation required for the diagnosis, maintenance, or repair of a video game console and its components and peripherals.

(10) Nothing in this section shall be construed to require any original manufacturer or authorized repair provider to make available documentation or tools used exclusively for repairs completed by machines that operate on several digital electronic products simultaneously, if the original manufacturer makes available to owners of the product and independent repair providers sufficient, alternative documentation and tools to effect the diagnosis, maintenance, or repair of the digital electronic product.

(11) Nothing in this section shall be construed to require an original manufacturer to make available special documentation, tools, parts, or other devices or implements that would disable or override, without an owner's authorization, antitheft or privacy security measures that the owner sets for digital electronic products.

(12) Nothing in this section shall apply to set-top boxes, modems, routers, or all-in-one devices delivering internet, video, and voice systems that are distributed by a video, internet, or voice service provider if the service provider offers equivalent or better, readily available replacement equipment at no charge to the customer.

(13) Nothing in this section shall apply to off-road equipment, including without limitation, farm and utility tractors; farm implements; farm machinery; forestry equipment; industrial equipment; utility equipment; construction equipment; compact construction equipment; road-building equipment; mining equipment; turf, yard, and garden equipment; outdoor power equipment; portable generators; marine, all-terrain sports, racing, and recreational

159 vehicles; stand-alone or integrated stationary or mobile internal combustion engines; power
160 sources such as generator sets, electric batteries, and fuel cell power; power tools; and any tools,
161 technology, attachments, accessories, components, and repair parts for any of the foregoing.

162 (14) Nothing in this section shall apply to fire alarm systems, intrusion detection
163 equipment that is provided with a security monitoring service, and life safety systems.

164 (15) Nothing in this chapter shall be construed to require an original manufacturer or
165 authorized repair provider to make available any parts, tools, or documentation required for the
166 diagnosis, maintenance, or repair of public safety communications equipment, the intended use
167 of which is for emergency response or prevention purposes by an emergency service
168 organization such as a police, fire, or emergency medical services agency.